

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



November 16, 2018

Honorable James L. Long
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Grozav, Jessie Ruben
CDC No.: F15289
Case No.: 05F03297
Date of Sentence: 02/09/2006

Dear Honorable James L. Long:

The purpose of this letter is to provide the court with authority to resentence Jessie Ruben Grozav pursuant to Penal Code Section 1170, subdivision (d)¹. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Inmate Grozav was sentenced in 2006, and was convicted of section 245, subdivision (a)(1), Assault w/deadly weapon. The trial court sentenced inmate Grozav on 02/09/2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Grozav's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

¹ All further statutory references are to the Penal Code unless otherwise indicated.

Based on the above facts and case law, it appears that inmate Grozav's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled² and that he be resentenced³ in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Sacramento District Attorney
Private Attorney

² Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8)).

³ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.

Gonzalez 11558014 - 12-5-19
2/15/08
F-15289
PSP

CR-290.1

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences.)

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF SACRAMENTO ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT		FILED / ENDORSED FEB - 2 2007 By <u>D. Lashley</u>, Deputy Clerk			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JESSIE RUBEN GROZAV XREF - 3945082 AKA: CIN# A24629703 BOOKING #:				DOB: 12-23-87 POB: Sacramento, CA	CASE NUMBER 05F03297
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT				☐ NOT PRESENT	☒ SECOND AMENDED ABSTRACT
DATE OF HEARING 02-09-06	DEPT. NO. 40			JUDGE JAMES L. LONG	
CLERK D. LASHLEY	REPORTER K. GREINER, #3690	PROBATION NO. OR PROBATION OFFICER A-399,812			
COUNSEL FOR PEOPLE TAN THINH, DDA		COUNSEL FOR DEFENDANT P. COZENS, RETAINED ☐ APPTD.			

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERA (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
1	PC	245(a)(1)	Assault w/ deadly weapon	2005	1-11-06			X	L	2	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL	
1	PC 12022.7(a)	3	PC 186.22 (b)(1)	10					13	0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL	

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5.
b. RESTITUTION FINE of: \$200.00 per PC 1202.45 suspended unless parole is revoked.
c. RESTITUTION of: \$_____ per PC 1202.4(f) to ☒ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7, below.)
(1) ☒ Amount to be determined. (2) ☐ Interest rate of: _____% (not to exceed 10% per PC 1204.4(f)(3)(F)).
d. ☐ LAB FEE of: \$_____ for counts: _____ per H&SC 11372.5(a).
e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a). f. ☐ FINE of \$_____ per PC 1202.5.

6. TESTING: ☐ AIDS ☐ DNA pursuant to ☐ PC 1202.1 ☐ PC 296.1(a)(1)(A) ☐ other (specify): _____
☐ DNA Collected ☐ DNA Sample Collection Verified

7. Other orders (specify): Deft shall pay \$178.95 booking fee and \$29.95 class fee pursuant to GC 29550.2-DRR

Deft shall pay \$20.00 court security fee pursuant to PC 1465.8(a)(1)-DRR

Deft shall satisfy the requirements of PC 296/296.1.

8. TOTAL TIME IMPOSED: 15 0

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED: 02-09-06 CREDIT FOR TIME SPENT IN CUSTODY: 317 TOTAL DAYS: 317 ACTUAL LOCAL TIME: 276 LOCAL CONDUCT CREDITS: 41 ☐ 4019 ☒ 2933.1 SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC

12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections.
☒ other (specify): DVI

CLERK OF THE COURT: I certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: D. LASHLEY DATE: 2/02/07

This form is prescribed under PC 12192.5 and must comply with the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.